Rule 26(f) ESI Meet-and-Confer Proposal

DRAFT FOR CONFERENCE — NOT A STIPULATION. Case 4:26-cv-09249-ASK (N.D. Cal.), Magistrate Judge Ajay S. Krishnan.

Plaintiff proposes the following targeted electronic discovery protocol pursuant to Rule 26(f), the Northern District of California ESI Guidelines, and the Court's Civil Standing Order. No item below is binding absent agreement or order.

1. Systems, custodians, and scope

Amazon: Simple Hire; ATS/recruiting; workforce staffing and shift scheduling; background-screening integration; HR screening review; email and internal chat for assigned recruiters and reviewers.

Accurate: Order management; component vendor/court searches; identity matching; case management; report generation/distribution; dispute intake; applicant portal; relevant business email for order 496623722.

2. Preservation

Preserve nonprivileged responsive records and reasonably available historical versions from July 1, 2026 through final disposition of the screening and dispute. Preserve report/version IDs, field histories, actor IDs, status transitions, API messages, system and vendor event logs, attachments, template variants, and communications. Disclose auto-deletion cycles and any necessary targeted suspension of deletion.

3. ESI formats and metadata

- **Email:** Native EML/MSG with attachments, full headers, and available metadata.
- **Structured application and screening data:** CSV or JSON with field names, original timestamps, time zones, and record IDs.
- **PDFs:** Searchable copies and native originals when PDF conversion obscures significant properties.
- **Technical documentation:** Codebooks, event types, abbreviations, system identifiers, and report-version IDs.
- Explain each material source that cannot export in native or reasonably usable format.

4. Searches and transparency

Search by Plaintiff's relevant name variants and order 496623722, related component IDs, spelling “NEWANSORBI,” dates, and positions. For disputed gaps, identify repositories, search methods, time ranges, custodians, and retention limitations. Deduplicate exact copies while retaining distinct report versions and meaningful event differences.

5. Schedule and privilege

Propose first-wave Rule 34 responses within 30 days of the Rule 26(f) conference if delivered in advance under Rule 26(d)(2). Prefer rolling production for applicant-specific source records. Discuss dates for interim and final privilege logs under Rule 26(b)(5) and a possible FRE 502(d) order.

6. Confidentiality

Discuss using an appropriate Northern District protective order addressing identifiers, screening records, proprietary source-system details, and internal decision records. Confidentiality should not become an indefinite barrier to otherwise discoverable materials.

7. Early production priorities

- **Amazon:** Application input; July 27 shift-change record and reason; Accurate screening receipt, status, and notes.

- **Accurate:** All report versions; Santa Clara component logs; October 13 package review; October 14 notices; alias provenance; transmission logs.
- Obtain a common system-identifier crosswalk from both defendants.

8. Questions for the conference

1. What is the actual date of the first Rule 26(f) conference?
2. Which platform and secure transfer method will each defendant use?
3. Who are the system custodians and technical points of contact?
4. Will the parties adopt a preservation and ESI protocol?
5. Is a protective order necessary for particular information?
6. What is the initial production date and when will missing report versions be revisited?